MYSTERIOUS MURDER OF THE MILLIONAIRE'S WIFE Rarely have homicide sleuths been confronted by such a mish-mash of marital mixups like something right out of "Mary Hartman, Mary Hartman." But in this case no one was laughing, because not one, but two women, had died violent deaths... **by DAVIE RAEFORD**

NOTHING in the human experience is so fascinating as the suddenly revealed strangeness of the lives lived by others. No showcase is so certain to reveal this strangeness as a murder trial. In Lizzie Borden's trial for the heinous murder of both her parents, the crime itself did not excite such wonder as the eccentricities of Borden family life. For example, there was the breakfast eaten by this ill-fated group on the morning of their tragedy: bananas, ginger cookies and mutton soup. Some thought the menu was probably the motive for these bloody murders.

On March 22, 1976, a Monday, there began a trial in Albemarle, North Carolina, seat of Stanly County, which featured a cast of characters whose lifestyles were what most southerners would term "a pure curiosity."

The people were curious, too. A packed courtroom showed up on Wednesday, after the jury selection, to hear Harold George Furr tried. He had been tried before, that lengthy and expensive procedure having begun on January 12, 1976. The first trial looked as though it would end with a hung jury, anyway, and then one of the jurors had become so desperately ill before a verdict could be reached that the judge had seen fit to declare a mistrial. By the intense concentration exhibited by spectators at the second trial, one would never guess they had heard this brutal mess before.

District Attorney Carroll Lowder, assisted by Kenneth Honeycutt, would represent the people, while Furr would be defended by Elton Hudson and Roger Smith. All the attorneys were exceedingly able, and the people of Stanly County all sat around waiting to see if these assembled legal minds would be able to sort any sense out of it. Judge W. Douglas Albright presided.

In the first trial, Harold George Furr had merely been charged with the first degree murder of his wife, Earline Horton Furr, who at the age of 40 had been the mother of the defendant's four children, but District Attorney Lowder had gone into Furr's second trial loaded for bear. This time Furr faced the first degree murder charge, plus twelve additional charges of soliciting to murder three different people, namely, Mrs. Furr, her attorney, and a third party, one Johnny Laney, who had also been convicted of the manslaughter death of his own wife, Doris Laney, who had been Harold George Furr's girlfriend. If it sounds complicated, it is, but it is also interesting.

Stanly County is in that rolling countryside of North Carolina where the land starts rising to meet the foothills of the great Blue Ridge Mountain chain. It is a beautiful place, and most of its people are hardworking and fairly prosperous. Some are more prosperous than others, like Harold Furr, who in January of 1973 had filed an affidavit form of financial statement with a North Carolina bank which showed he had assets amounting to $1,099,000. Interested in a

variety of business enterprises, Furr's main business appears to have been that of real estate development in the little town of Locust and other similar locations.

To look at the peaceful little town of Locust, some 20 miles from sizable Albemarle, one would not think it was possible to make a great deal of money there in the real estate business, but apparently it was. Furr had a lot of money and a great sprawling home some 2½ miles from the town.

Up until January 4, 1973, the successful real estate man also had an attractive wife and four equally attractive children, two girls, 21 and 20, and two boys, 13 and 9. On that date, according to documents filed in the trials, the Furrs separated. Earline Horton Furr remained in the home, while Harold Furr went to live in a house trailer in one of his developments not far away.

The marriage of Harold Furr and his wife had apparently not been a happy arrangement, and their separation was merely an extension of a bad job. One of the first witnesses to take the stand for the state was the victim's brother-in-law, the husband of her sister. He testified that Harold and Earline had been married for 23 years at the time of her death.

It is probably significant that the Furrs were not divorced, although North Carolina has a one-year-separation statue under which it is impossible for anyone to prevent his spouse from getting a divorce so long as the plaintiff can prove he has indeed been living separate and apart from his mate for a period of one year. The hangup appeared to have been money and property. Earline Furr wanted hers, and Harold Furr didn't want to give it to her.

As the victim's relative went on with his testimony, it was learned that both the Furr daughters had married and moved out of the family home. Each had one child. For one reason or another, the 21-year-old daughter had moved back into the family home with her mother and two younger brothers, and was residing there at the time of her mother's death.

The witness said he lived with his family in Birmingham, Alabama, but made periodic visits to North Carolina, averaging from four to six times a year. From his frequent contacts and conversations with his sister-in-law, the witness testified, he had learned that she was in absolute terror of her life from her then estranged husband. He had attempted to help straighten this matter out, and made a visit to the trailer where Harold Furr lived. During this visit he had asked Harold Furr bluntly where he had threatened to kill Earline.

"His answer to that was 'yes'," the witness testified, "and I told him that if anything ever happens to Earline, please be assured that I intend to pursue the matter."

From time to time looking levelly at the cold-faced defendant, a burly-looking man whose dark hair had receded considerably from his brow, the steady witness went on to assert that Furr had told him he could not stand Earline nagging him any longer, that she followed him around nagging. "When I leave the house she wants to know where I am going," the witness quoted Furr, "and I just can't stand it any more."

That had been in February of 1973. In March of that same year, the brother-in-law said, he and his wife had again visited Stanly County, and had seen Furr come out of an office he maintained next to the family home where his wife and children were living. Earline Furr had been sitting with the witness and his wife in their car at the time. Upon seeing her husband, she had begun to cry, at which Furr had demanded, "What do you want?"

"I want you to come back and live with us," his wife had replied, according to testimony. "I want you to be a husband and a father and I want things to be like they used to be."

"Well, that can never be," the witness quoted Furr as having replied. "What else do you want? What other kind of settlement can we agree on?"

"I want what is rightfully mine," his wife allegedly replied tearfully. "Half of everything."

At that, the witness said, Harold Furr had become angry, pointing out to his wife that if they haggled over their money and property in that way, lawyers would end up with everything they owned.

"I don't really know about that, all I know is I want what is mine," the witness quoted Earline Furr's tearful reply.

Harold Furr's reported response was: "I'll see you in hell first!"

Adroitly questioned by Prosecutor Lowder, the witness told the court that Earline Furr's distress was obvious to anyone knowing her. Formerly a robust woman whose shapely figure brought the scales up to 140, she had at one point lost weight until she weighed a mere 98 pounds. Obviously, a misery that was affecting someone that much was not just in her head.

Moving ahead in his testimony to the period immediately following Earline Furr's funeral, the brother-in-law had called Furr to set up an appointment to discuss a disposition of the children. He would have taken both boys, the witness stated, one of whom was 15 at the time while the other was only 11, but he could not come to agreement with Furr.

Concluding his testimony with one last level look at Furr, the witness left the box, to be quickly replaced by one Johnny Laney, who had been given leave from his confinement in Wadesboro, North Carolina prison unit to testify in this trial.

Laney told the court he had been in prison for two years, but that prior to his confinement he had resided in Locust for 16 years. He had been married to Doris Laney, whom he had wed in 1954, and the couple had several children, two of whom were still living at home when their parents separated in June of 1973. A 12-year-old boy had remained with him, Laney said, while his 17-year-old daughter had gone to live with her mother, who had moved out of the family home and into a mobile home in a development called Western Hills, only some three or four hundred yards away from the trailer in which the wealthy Mr. Furr was living. There had been no other dwellings between Mrs. Laney's trailer and that occupied by Furr and it was Laney's testimony under oath that his estranged wife had become involved with Furr.

"When did you kill Doris Laney, Mr. Laney?" Prosecutor Lowder interjected at this point in a conversational tone.

"August 7, 1973," the witness replied heavily, as though that date was burnt into his mind indelibly.

A series of questions elicited the information that the slain Doris Laney had been 36 years old at the time of her death, which had occurred at about six in the afternoon or a little after. Later testimony established that the witness had shot his estranged wife of 19 years squarely between the eyes. He was subsequently convicted for manslaughter and sentenced to serve 10 years imprisonment.

After his conviction, Laney testified, when he was out on appeal bond, Furr had come by his home driving a black Thunderbird, and had pointed a gun at him.

"He said 'You son-of-a-bitch, I'm going to kill you'" Laney said, "and I told him he ain't got the guts to shoot me."

A little later, Laney said, Furr had returned to repeat the menacing action with the gun and his threats, adding that he was going to kill Laney "and Earline and get even with everybody that testified at your trial."

Furr had continued to harrass him, Laney stated, even after he had been confined to the prison unit.

Laney's testimony was bolstered by that of a relative by marriage, who had seen Furr menace Laney with a gun.

From later testimony, it would appear that if Harold Furr had loved Doris Laney, he didn't grieve for her very long. The pretty Laney woman was hardly cold in her untimely grave before Furr according to testimony, had another girlfriend, with whom he lived from time to time in the trailer wherein Doris Laney had been murdered.

Having given a sort of background for his graphic description of homicide, Solicitor Lawder moved into official testimony regarding the murder of Earline Horton Furr, on September 15, 1975, which was a Monday.

A resident agent of the State Bureau of Investigation, Bart Burpeau, described the setting for the jury. In order to reach 1001 Willow Drive in Locust, Burpeau said, he had driven West from Albemarle on Highway 24-27, out to the eastern side of Locust to the rural paved road which lay north of the highway. Approximately a mile from 24-27 was a very large red brick house with white trim, setting back at least 150 feet from Willow Drive. There was a wide cement driveway leading up to the imposing residence, made even bulkier in appearance by two other buildings, one a garage and one an office, which were connected to one another, thence to the main house, by some sort of ornamental cement work. The furthermost building from the house was the office, on the north end.

Behind this house were several outbuildings, barns and what-have-you. It was a picturesque setting. Directly north of the house was green, rolling pasture in the center of which was a small pond. Beyond that was a small wooded area lying between the Furr house and its nearest neighbor. The tree line extended almost to the road and went on back behind the residence, affording a screen of privacy for activities at the Furr place.

The concrete facades which extended between the office and garage screened a walkway behind it. To illustrate the rather unusual setting, Burpeau introduced photographs, including aerial shots, which he pointed out where made by SBI Special Agents Wayne Pegram and C.D. Holbroook. Other aerial shots showed the Western Hills development where Harold Furr had lived in trailers with first one and then the second girlfriend. With the use of his photographs and maps, Burpeau traced two routes by which one could go from the Furr trailer to the residence. One route was only 2.5 miles and, driving the speed limit, could be traversed in only four minutes and 40 seconds.

Burpeau was followed to the stand by Lt. Steve Mills of the Stanly County Sheriff's Department, who testified that at 2:50 p.m. on September 15, 1975 he, Bart Burpeau and C.D. Chambers, District Supervisor for the State Bureau of Investigation, had been together when a call was received concerning the shooting of Earline Furr. They were the first officers on the scene. A quick conference with persons waiting at the Furr residence indicated that Mrs. Furr's 11-year-old son had found his mother dead when he returned from school around 2:15 p.m. The child, deeply upset and frightened, had run to the home of a friendly neighbor, from whose telephone he had called his older sister at her place of employment. She had reassured him, and promised to come home immediately, which she did. The neighbors who waited with the Furr children had also seen the body, but they had not touched anything, other than the neighbor checking for a pulse.

Conducted into the spacious dwelling, Mills said, he and his two State Bureau colleagues had been directed to the third bedroom on the left from the front entrance. In that bedroom, neatly kept and arrayed with every kind of toy an 11-year-old boy might want, the body of an attractive woman lay face up on the bed, her feet and lower legs hanging from its edge. Detectives later surmised that Mrs. Furr had been straightening up the boy's room when she was attacked. The woman herself occupied the master bedroom.

The body, clad in a filmy pink peignoir over underwear and a slip, showed no sign of life. One of the victim's hands rested on her left hip, while the other was laid up against her shoulder. There was a hole in the right chin area, and a crimson streak where blood had drained from it. It appeared to be a gunshot wound. Looking closely at the woman's face, the lawmen had seen an extensive discoloration and laceration to the right eye. When the autopsy was performed, it would be established that the victim had suffered a gunshot wound through her eye.

In addition, there were some dark, grayish marks on the woman's left hand, on the outside, along the index finger and thumb, possibly where a defensive hand had been thrown up in front of a gun, receiving some residue when the piece was fired. The victim might even have been grasping the gun when it was discharged.

SBI Agent Burpeau felt the victim's left wrist for a pulse, but there was none. Medical authorities were later to conjecture she had been dead for some five to seven hours.

On the attractive victim's ears were two large diamond earrings. An even larger diamond ring adorned one hand, while the other still bore a massive diamond cluster ring and an expensive white gold wrist watch. It seemed obvious at once that robbery had played no part in this murder scheme.

The watch on the victim's wrist had a broken crystal. Its hands had been stopped and broken somewhere between 9:00 and 10:00 o'clock.

A medical examiner was called, along with SBI technical experts. Mills remained in the room with the body until SBI Special Agent Wayne Pegram arrived. During the trial, Pegram would take the stand in his turn to testify he had arrived about 4:00 p.m. and had gone directly to the child's bedroom where Earline Furr's body had been found.

After photographs were made, Pegram proceeded to examine the corpse for his technical evidence. He, too, observed the injury to the eyelid. He moved it some, but did not attempt to clean the area. The eyeball was torn, the skin beneath it burned. Obviously, it was a bullet wound.

With a quartz light, the forensic expert examined the ceilings and wall of the death room, but there was no sign of blood other than on the neat bed where she lay. The entire place was fingerprinted, but nothing out of place was found in this immaculately clean dwelling. Special attention was paid to the front door and the door entering the death room, inside and out. Altogether, 39 latent prints were lifted, none of which would be useful as evidence.

In the den of the Furr home was a locked gun case containing a .22 automatic rifle, a .410 shotgun, a .12 gauge shotgun and an antique rifle. In the master bedroom occupied by Earline Furr there was a large chest of drawers, the top of which bore a heavy layer of dust. In this dust was a .32 caliber Iver Johnson pistol. It was the opinion of detectives that this had not been of any importance to the crime, since it left a perfectly clear outline in dust when lifted from its hiding place.

Once the body had been removed, detectives got a chance to examine the portion of the bed which was underneath. There was a circle of blood about 24 inches in diameter under the head, which had soaked through the mattress, and natural body fluids that had leaked when bodily control of natural functions had been ended by death. Other than that, there was nothing of any interest on the bedclothing.

Detectives took the 11-year-old Furr child into his bedroom and went over everything in there, piece by piece. They could discover nothing out of place except a piece of foliage, later found to have come from a plant in the hall.

In conversation with other members of the family in residence there, detectives learned of the distress within that wealthy family. The 21-year-old daughter recalled for officers an incident in

which her mother had wept and begged Harold George Furr to come back home, saying that her two young sons needed their father. According to the girl's recollection, her father had laughed brutally, making fun of everything his wife said, saying that she was ugly and that he did not want her anymore, that he hated her and that he would kill her but that he would make her suffer first. He would grind her up into hamburger meat, the young woman quoted her father as having told Earline Furr, and feed her to the dogs. With this, the arrogant Furr had stomped out of the house. Earline Furr had followed him to his car, weeping, and he had grasped her by her arm and hurled her back into the yard.

The daughter also recalled a day in August of 1973, when her father's girlfriend had been slain by her husband, Johnny Laney. She had been in her father's trailer at the time, the girl said, and Furr had gotten out his guns upon learning of Doris Laney's death and said that he would kill that son-of-a-bitch (Laney) when he came out of the trailer. She had tried to stop her father, she told officers, but he had thrown down on her with the gun, locked the trailer door and made her sit on the couch. Her older sister had talked her father out of it, the girl went on, but he had wept hysterically. Afterward, Furr had wiped his jowly face with a flimsy tissue, then flung the sopping thing at his younger daughter, saying "This is for you and for your mother!"

In the summer of 1974, the daughter continued, went on, she had several times driven her mother's car in the area where her father had been living. He had warned her, she said, about driving her mother's car down there, saying he had threatened to kill her mother if she ever came down there again, and that he would hate to hit her, his daughter, by mistake.

On the morning of the slaying, the daughter reported, her mother had awakened her for work at 10 minutes before seven. She knew her mother's watch was working at that time, because the older woman had looked at it to tell her what time it was. The hands on the broken watch, stopped between nine and ten, had probably accurately told the time of the murder, since autopsy surgeons said Earline Furr had died sometime between eight and ten on the day her body was discovered.

As the girl had last seen her mother alive, the older woman had been fixing breakfast for her two sons, who would shortly leave for school.

The 11-year-old boy said the last time he had seen his mother was when she kissed him goodbye, inside the house, before he met his school bus.

In the spacious bedroom usually occupied by the murdered woman lawmen found a pair of sliding glass doors which would be fairly easy to enter from the outside, although there was no sign that anyone had done so.

Another entrance to the Furr home could have been effected through the garage, the door of which was worked by a remote control button carried in the homeowner's car. Lawmen later learned that there had originally been three of these contrivances, and that Harold Furr still had one of them.

Anyway, it was not certain that any unusual means of entry had been used, since the Furr children were not at all sure the door had been locked behind them when they left for school. Sometimes, it was not. Any chance killer could just have walked in off the road.

According to the further testimony of SBI Agent Burpeau, they did not believe a chance killer had taken Earline Furr's life. One cannot carry on in a small town like Locust, the sort of disagreements the Furr's had without an awful lot of people knowing all about it. Most people who heard of the shooting thought there was a good chance that either Harold George Furr or someone of the many people connected with him had been involved in tragedy.

At 6:30 on the day the crime was discovered, officers went to Furr's residence and took him downtown to the sheriff's office, where he gave them a statement which did not incriminate him. The suspected man was accompanied by two attorneys. After the statement was signed, Furr returned to his home, and officers investigating the slaying of his wife returned to their patient rounds of interviews throughout the community.

On November 17, 1975, Harold Furr was arrested and charged with the murder. SBI Agent Burpeau along with Lieutenant Mills and Deputy Loy Ingold, of the Stanly County Sheriff's Department, together with another SBI investigator, Giles Barrier. They were armed with a search warrant and were mainly looking for guns. Other items found in the Furr trailer, which these officers would have very much liked to have, they were unable to take on this search because these items were not listed on the search warrant.

What they did get was guns, as follows: a Winchester .22 caliber short rifle, Model 72, containing four bullets, one in the chamber; Western ammunition; a .22 caliber short pistol containing six rounds of short Western ammunition; wrapped in a green-and-white rag on top of some racing magazines, a .38 caliber Colt Detective Special in a holster, containing six rounds; one sawed-off shotgun; a pump-action single barrel shotgun was in a guitar case found under a bed in the back bedroom; a Smith & Wesson .32 caliber pistol with six rounds; and three other assorted shotguns and rifles in a gun rack near the trailer's entrance; a Browning automatic containing five rounds; a Remington .30-06 rifle with two rounds, one in the chamber; an empty box which had contained Western Super-X bullets, .22 caliber; a box of Winchester long hollow-point extra power .22 caliber bullets, and much other assorted ammunition.

In the trunk of a Chevrolet Camaro parked outside Furr's trailer, lawmen found twenty-seven .22 caliber short bullets.

They had been primarily looking for .22 caliber weapons and ammunition. Although the bullets which had taken Earline Furr's life had been so broken and splintered as to be useless for ballistics purposes, weight tests showed it was likely they were of .22 caliber.

There was a blackjack on Furr's dresser and a machete with an 18-inch blade hanging on the gun rack.

In truth, it appeared that the accused man had been ready for just about anything.

Along with the weapons, which their search warrant called for, the searching lawmen found reams of pornographic materials, some of which were shocking even to veteran officers, and a stack of newspaper clippings concerning homicides and accidents involving guns. Sad to say, they were unable to take any of this potentially significant material along, since they had not suspected its presence in their application for a search warrant had not listed any such thing among the items they expected to find in the Furr trailer. Consequently, although the finding of these items was fully covered in investigative reports, District Attorney Lowder made no mention of them in the trial.

Among the other witnesses who took the stand against Furr was a local man who had arranged with the defendant to place some animals in a pasture at the Furr home place. Apparently, Mrs. Furr had objected to this, and a terrible scene had ensued, according to the witness, who probably wished he'd never heard of either of them. Furr had called his 15-old-year son "a little bastard," the witness testified, and said he would stomp him into the ground. Furr had dared either his wife or son to step over the fence, and he ended up cursing everyone roundly, including the witness, who barely knew the man.

The really telling pieces of testimony then were heard, as five different men gave testimony as to how they were approached by Furr on the subject of killing his wife, her lawyer, and Johnny Laney. It would be extra valuable to him, Furr had told one of them, if Laney was shot right between the eyes, as he had killed Doris Laney, Furr's girlfriend.

One of the men who had been approached to locate a hit man was a wellknown racing car driver, who told the court he had driven a racecar for Furr in 1972, but had never been "elbow-rubbing buddies" with the stocky real estate developer. In 1974, the driver said, Furr had asked him to come down and appear in court to give an estimate on some racing equipment. A week prior to this court hearing, he had gone to Furr's office to talk with him. There had been a woman there at the time.

At this point the District Attorney asked the witness if the attractive woman in Furr's office had not been Daisy Dunlap, who, it had already been testified, was Furr's current girlfriend, who lived variously with him in his trailer, and with Furr's mother in her home. The witness said he felt sure it had been her.

"We talked around general things and then it got around and he said, 'Do you know a hit man?'"

Well, the witness said, he told Furr that not right off, he didn't.

Asked to describe the conversation, as to whether it was serious or not, the witness said, in so many words, he felt sure Furr was serious.

Several other witnesses intervened before another man, mounted the stand and said he had been approached by Furr to murder Mrs. Furr, an act for which he had been promised $2,500. This man declared Furr had taken him out to the big house and told him the best thing to do would be go in through the woods, and that the best time would be of a morning. He would not have to worry about getting in the house, Furr had allegedly told this witness, since the back

door could be easily opened. The man said Furr asked if he had a gun, and was told he did not. That was no problem, Furr allegedly had said, he would get the man one.

The motive for the murder, according to the witness' version of what Furr had told him, was that Furr's wife was trying to get "every goddamned thing I've got."

If the testimony was true, and the jury apparently thought it was, Harold George Furr may have known where to place real estate developments, but he was a real dodo about picking contract killers. The last candidate for the job to testify had backed out of the deal, too, and put the quietus on the whole thing by moving back to Georgia, where SBI Agent Giles Barrier later found him to take his statement.

Another witness, this one a used car salesman, said he had known Furr for 20 years when the latter came to his house and told him he wanted him to kill Johnny Laney, because Laney had killed the girl he loved. According to this witness, Furr said Laney had gotten off with a light sentence for the murder of his faithless wife, and that it was not right. He believed his own wife, Earline, had tipped Laney off to their affair.

The witness said he told Furr he was charged at that time for betting on ball games, and was told by the FBI "not to talk to no crooks or be around none."

In April of 1974, the witness said, Furr had returned, again wanted someone to kill Laney, and asked the witness how much he thought it would cost to get the job done. Laney was to be sent to prison in May of that year, Furr allegedly had said, and he wanted him killed before he got behind protective bars.

On another occasion, the same witness testified, Furr had tried to persuade him to plant some illegal narcotics on Earline Furr who, Furr said, was going to ruin him in court if he couldn't make her look bad.

In March of 1975, the witness went on, Furr had come by his car lot, and had been invited to come on over to the car dealer's house. This time, Furr had said that if the car salesman could get somebody "to do that job for me," that he had two more such "jobs" for a killer. The car dealer knew that the first victim referred to was Johnny Laney. When he asked Furr who the other two intended marks were, the latter had allegedly replied that they were his wife, Earline Furr, and her lawyer.

"I told him, I said, Harold, if you kill a crook, you're talking about killing a man who's killed somebody, and that's one thing...but when you get to talking about killing women and an official of the court you would draw so much heat on you you just can't stand it. He said he could stand the heat. Said he would have him a good alibi. Said he would have his mother."

As soon as Furr left his home, the witness said, he had gone to the office of the father of the lawyer named, and had warned him of Furr's desire to murder his son.

"I believe you would do this for me if it was my son," the witness said he had told the lawyer's father. "I got word that if your son, Earline Furr and this Laney boy gets together, this man says he's liable to kill everyone in that bunch."

The witness said he had seen Furr every few days afterthat, and most of the time the stout real estate man would ask, "Have you found anybody for me yet?"

Several times after Earline Furr's death, the witness said, Furr had told him he believed his phones and walls were tapped with listening devices.

Under cross-examination, the witness told defense counsel that as soon as Furr had mentioned murdering a prominent attorney he had known that the would-be murder contractor was "in a different ballpark and I knew he was accelerating."

Further cross-examination brought out nothing at all favorable to the defendant, and on redirect, the District Attorney elicited details of Furr's growing hysteria at the contemplation of murdering Laney, his wife and her attorney.

"He got madder and madder every time," the car salesman said, "crying with his eyes and laughing with his mouth when he talked about getting all three of them in an office and killing them."

Later in the trial, two more men took the stand with similar accounts of having been solicited to commit murder. Both of them were men who had been jailed at a time when Furr was in the can on a contempt charge, the result of his having failed to pay Earline Furr money as ordered by the court.

One of these men said Furr had driven him by his wife's home, pointing out where there was a sliding door in the rear that could be easily raised with a pick or hoe. Furr had also gone into his family's daily school and work schedule, the man testified, and told him he would be willing to pay three thousand dollars for the job.

The other man of this pair added to this testimony by saying that once when Furr had taken him out to the big house alone, he had opened the glove compartment of his car and gotten a remote control switch out of it with which he opened the garage door of his wife's home. According to this witness, Furr said his wife would never know he had opened the door from the outside, because you could not hear the sound of its opening inside the house.

To this witness, Furr had suggested that one way of murdering Mrs. Furr would be to do something to her car.

Among the most telling evidence presented by the prosecution, although it was not evidence with a direct bearing on the murder, was in essence as follows: Harold George Furr, following his wife's death, made no effort to contact any one of his children, although his youngest son was only 11-years-old and without comfort in this awful tragedy. He did not attend his own wife's funeral, but had called the operators of the cemetery in which the Furr plot was and told them he

would sue them if they allowed his wife's body to be buried in the family plot. Furr's mother, his motehrless children's grandmother, had not attended Earline Furr's funeral, nor had she made any attempt to comfort her grandchildren. Of all the many mistakes a murderer might make, this was probably the most heartless and the most foolish, since its coldness so closely fit the image most persons, including jurors, have of a murderer.

The defense began by putting on witnesses who testified to having seen Furr and his current girlfriend at various places on the morning of Earline Furr's murder. The earliest time anyone had seen him had been at 10:00 a.m. that day or a little after, but, owning to the close proximity of the murder scene and the fact that the killing probably occurred between 9:00 and 10:00 a.m. that day, this didn't help him much.

There was a defense witness who testified he had seen Earline Furr in her car at an intersection in Locust at 11:00 a.m. on the day of the murder, but on cross-examination he admitted he did not know the woman, although he adamantly insisted he knew it was her.

Furr's girlfriend testified she had spent the night with Furr on September 14th, the night before the murder. They had set the clock for 8:30, she said, and he had gotten up at 9:00 a.m. Then they had begun driving to various places where work was supposed to be in progress in connection with Furr's business. She had difficulty remembering what time they had gotten to Furr's office, but said she thought it was after 9:30, at which time she had gone to the post office to check the mail.

All through this witness' testimony were homely little domestic details, which after a while prompted titters of laughter in the courtroom. The spectators' funny bones were really touched by this woman's telling of a "persimmon pudding" which had figured in the noon menu. The thought of a light-of-love tasting persimmon pudding was too precious to be taken seriously.

On cross-examination, the witness revealed she had been married three times and had five children, the youngest of whom was only 10-years-old. She had once stayed in a trailer near Furr's, the woman said, and had later begun staying off and on with Furr, who in his romantic tendencies seemed to lean heavily on annexing whatever women lived in convenient nearby trailers.

On cross-examination, District Attorney Lowder really bore down on this witness, pointing out contradictions in what she now said and what she had originally told officers. Finally, she retreated in confusion to "I don't know," and "I can't remember" answers before leaving the stand.

Lowder had little mercy, either, on Furr's 79-year-old mother. Why had she not called her grandchildren after the death of their mother? he wanted to know. Furr's excuse for his own heartlessness had been that he had been under a court order to leave his family alone, but this order did not cover the Furr children's grandmotehr.

"I ask you isn't it true that your only interest was in protecting your beloved son, who as you have stated before is the only thing you have left in the world?"

The aged woman only stared at the District Attorney, making no answer to this purely rhetorical question, which Lowder quietly withdrew.

Furr later took the stand in his own behalf, denied everything, and did his best to withstand a withering cross-examination.

None of it did any good. With night sessions to stretch out trial time, the case went to the jury on Saturday, March 27th. After three hours deliberation, the jury brought in verdicts of guilty.

On the first degree murder charge in the death of Earline Horton Furr the guilty verdict meant a mandatory death sentence, which was passed on the pale defendant by Judge W. Douglas Albright.

Further, the defendant was found guilty of three charges of having solicited to commit murder and Judge Albright sentenced him to serve terms of eight to ten years on each.

On July 2, 1976, the United States Supreme Court rendered a favorable decision on the question of capital punishment, but the laws of two states were found to be unconstitutional. One of these states was Louisiana; the other was North Carolina. Among the more than one hundred condemned persons on North Carolina's death row in Central prison in Raleigh was none other than the one-time millionaire, Harold George Furr.

It was reported that many of these inmates, narrowly escaped from the gas chamber, clapped and sang as the news was told to them that meant the difference between life and death. Perhaps Harold Furr was among them. Having happily escaped the gas chamber, he may now look forward to becoming eligible for parole in about 50 years.

At this writing, Furr is serving his time within the prison system of North Carolina.

EDITOR'S NOTE: *Daisy Dunlap is not the real name of the person so named in the foregoing story. A fictitious name has been used because there is no reason for public interest in the identity of this person.*